

Ramesh Chand v. Uttar Haryana Bijli Vitran Nigam Ltd.

CWP No. 13209 of 2013 (P&H) (with 4 connected writ petitions)

High Court of Punjab & Haryana (HC-SB) | 2016-01-19 | Bench: Rakesh Kumar Jain J (1) | IK doc 139237229 | HC-009
| schema 1.0

Sections 126 and 135 operate in different fields — theft under Section 135 is not assessed under Section 126 but its civil liability is measured under Section 154(5); a hearing must be given only in cases of suspected theft, not where theft is 'writ large', and compounding under Section 152 is available in both.

GOOD-LAW as of 2026-07 · provision-version OK: True

§126 vs §135: good-law; a straightforward application of Seetaram Rice Mill (SC).

natural justice: good-law as an application of the suspected-vs-established-theft distinction under Circular 54/2007; the 'writ large = no hearing' proposition is fact-sensitive and should be read against the audi alteram partem line of authority.

§152 compounding: good-law.

Not overruled. Oral single-judge order on the post-2007 text; the Section 154(5) measure and the different-fields distinction are settled law. The 'no hearing where theft is writ large' proposition is the case's own contribution and is fact-sensitive.

FACTS & PROFILE

On inspection the meter was found dead-stopped with a wire soldered in the counter circuit after the counter lock had been broken; the Nigam treated it as established theft, made an assessment of Rs 11,66,650 and issued a Section 135 read with Section 152 notice offering compounding. The consumer challenged the assessment by writ, contending a show-cause notice was mandatory and that the amount could only be assessed by the Special Court under Section 154(5) (or under Section 126 after notice).

Procedural posture	Writ petitions under Article 226 challenging the final assessment / compounding notice
Outcome for	licensee
Relief granted	No relief to the consumer; assessment and compounding notice upheld.
Consumer category	unspecified (direct theft from pole/counter circuit)
Fact-pattern	dead-stop-meter, soldered-wire-counter-circuit, broken-lock, theft-writ-large, compounding-notice-s152
State	Haryana
DISCOM / party	Uttar Haryana Bijli Vitran Nigam Ltd. (UHBVN)
Statutory version	post-2007 (Act 26 of 2007) — the judgment reproduces the current Section 126(5)/(6) (twice the tariff; 12-month period), Section 135 with 'dishonestly' and the presumption proviso, and Section 154(5) (2x tariff for 12 months)

Disposition: Writ petitions dismissed; the Section 154(5) formula used by the Nigam was upheld, no hearing was required as the theft was writ large, and the consumer was left to accept the compounding notice or face trial before the Special Court.

ISSUES FRAMED

- Whether in case of theft, the consumer requires an opportunity of hearing or opportunity of hearing is only given in the case of suspected theft?

2. Whether the assessment under Section 135 of the Act has to be carried out in terms of Section 126 of the Act or in terms of Section 154 (5) of the Act as has been done by the respondents in this case?

INTERPRETATION OF THE ELECTRICITY ACT

Provisions construed: s.126, s.135, s.152, s.154(5)

s.126 / s.135 ratio post-2007 different-fields

§126 vs §135

Sections 126 and 135 operate in different fields: Section 126 is invoked for over-consumption / unauthorised use of electricity, whereas Section 135 is invoked for theft of electricity.

“Sections 126 and 135 of the Act operate in different fields. Section 126 is invoked in case of over-consumption of electricity whereas Section 135 of the Act is invoked in case of theft of electricity.”

— para (analysis)

s.126 / s.154(5) ratio post-2007 assessment-measure-for-theft

§126 vs §135

jurisdiction (§145/§154)

Section 126 cannot be applied to assess the amount to be charged for theft of electricity; the civil liability for theft is measured under the Section 154(5) formula (twice the tariff for the twelve months preceding detection, or the exact period of theft if determined, whichever is less), subject to final adjudication by the Special Court.

“provisions of Section 126 of the Act cannot be applied for the purpose of assessment of amount, which is to be charged for theft of electricity.”

— para (analysis)

s.135 ratio post-2007 hearing-suspected-vs-writ-large

natural justice

§135 mens rea

A show-cause notice / opportunity of hearing is required only where theft is suspected (broken/tampered seals, no evidence at site — per Circular 54/2007); where the theft is 'writ large' (here a dead-stop meter with a soldered wire after breaking the counter lock), no opportunity of hearing need be given before proceeding.

“in the case of suspected theft, opportunity of hearing has to be given but for the theft, which is writ large, as admitted by learned counsel for the respondents, no opportunity is required to be given.”

— para (analysis)

s.152 ratio post-2007 compounding-scope

§152 compounding

The remedy of compounding under Section 152 is available in both cases — established theft and suspected theft; accepting the compounding notice avoids trial before the Special Court, refusing it exposes the consumer to punishment and fine by that Court.

“So far as Section 152 of the Act in respect of compounding of the offence is concerned, it is applied in both the cases, where there is theft and is suspected theft.”

— para (analysis)

REGULATIONS / SUPPLY CODE CONSTRUED

- **UHBVN Instructions/Circular No. 54/2007 (procedure for suspected theft: notice, personal hearing, 75%-consumption threshold)** — implements s.135 enforcement procedure (made under Electricity Act, 2003)

AUTHORITIES CITED

Executive Engineer, Southern Electricity Supply Co. of Orissa Ltd. (Southco) v. Sri Seetaram Rice Mill

(2012) 2 SCC 108 · Supreme Court

followed

Cited for: Section 135 (theft) falls within criminal jurisprudence and requires mens rea/dishonesty, while Section 126 (unauthorised use) has no criminal intentment and is a civil remedy; the two operate in different and distinct fields with no commonality in law.

“Section 135 of the 2003 Act deals with an offence of theft of electricity and the penalty that can be imposed for such theft. This squarely falls within the dimensions of criminal jurisprudence and mens rea is one of the relevant factors for finding a case of theft. On the contrary, Section 126 of the 2003 Act does not speak of any criminal intentment and is primarily an action and remedy available under the civil law.”

— as quoted in the judgment

Rajinder Kumar v. Uttar Haryana Bijli Vitran Nigam Ltd. CWP No. 25585 of 2013 (P&H, 07.01.2016) · Punjab &

Haryana High Court

followed

Cited for: Sections 126 and 135 operate in different fields — Section 126 for over-consumption, Section 135 for theft (following Seetaram Rice Mill).

“It has been decided by this Court in CWP No.25585 of 2013 titled Rajinder Kumar and another Vs. Uttar Haryana Bijli Vitran Nigam Limited and others on 07.1.2016 that Sections 126 and 135 of the Act operate in different fields.”

— as quoted in the judgment

“It has been decided by this Court in CWP No.25585 of 2013 titled Rajinder Kumar and another Vs. Uttar Haryana Bijli Vitran Nigam Limited and others on 07.1.2016 that Sections 126 and 135 of the Act operate in different fields.”

— the Court’s own treatment

Mosmat Swaran @ Swaran Manraw v. State of Bihar 2012 (6) RCR (Criminal) 2422 · Patna High Court (DB)

Cited for: Cited by the petitioner on the requirement of notice/procedure in theft cases; not separately engaged with by the Court.

cited-by-counsel

RATIO & WHAT WAS DECIDED

§126 vs §135

HC-SB (Punjab & Haryana)

applies

Sections 126 and 135 operate in different and distinct fields; theft under Section 135 cannot be assessed under Section 126, and its civil liability is measured under the Section 154(5) formula, subject to final adjudication by the Special Court.

natural justice

HC-SB (Punjab & Haryana)

settles

A pre-assessment hearing in a theft case is required only where theft is merely suspected; where theft is 'writ large' on the checking report, no opportunity of hearing need be afforded before the licensee proceeds.

§152 compounding

HC-SB (Punjab & Haryana)

affirms

Compounding under Section 152 is available both for established and for suspected theft; it is offered before the consumer is proceeded against before the Special Court.

SIGNIFICANCE

A Punjab & Haryana single-judge authority applying the Seetaram Rice Mill 126-vs-135 distinction to hold three practical points: (1) theft is assessed under the Section 154(5) formula, not Section 126; (2) a hearing is due only for suspected theft, not theft 'writ large'; and (3) Section 152 compounding is available in both situations. Useful on the interface between the Section 135/154(5) theft channel and the Section 126 assessment channel, and on the 'writ large' exception to natural justice.

FLAGS

applies-Seetaram on 126v135

theft assessed under s.154(5), not s.126

hearing only for SUSPECTED theft; none where theft writ large

s.152 compounding available in both theft & suspected theft

post-2007-text

UHBVN-Circular-54/2007

Jurisprudence record — generated from HC-009.record.json for the Electricity Act §126/§135 project. Verbatim quotes are grep-verifiable against the source judgment.